Harris County District Court

Cause No. 2025-CV-0018

Stacy Andrews, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-1-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained therein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant denies that Plaintiff is entitled to recover in the capacity or amount alleged, and assetrs the following affirmative defenses.

First, Plaintiff's alleged injuries were not proximately caused by the collision at issue. The impact between the parties' vehicles was minor, and the injuries claimed are attributable to pre-existing conditions, unrelated events, or subsequent causes outside Defendant's control.

Second, Plaintiff failed to mitigate damages. To the extent Plaintiff did not follow reasonable medical advice, delayed treatment, or incurred unnecessary expenses, any recovery must be reduced accordingly.

Third, Plaintiff's own negligence contributed to the occurrence. Under Chapter 33 of the Texas Civil Practice and Remedies Code, Defendant requests that the trier of fact determine Plaintiff's percentage of responsibility, and that any recovery be reduced or barred in proportion to that responsibility.